

1 AN ACT relating to solid waste management service companies.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 109.045 is amended to read as follows:

4 (1) As used in this section, "confidential business information" means the following
5 information relating to ~~privately~~ contracted solid waste management services ~~that~~
6 ~~are not being provided pursuant to a franchise agreement~~:

7 (a) Commercial or residential customer service prices; ~~or~~

8 (b) Commercial or residential customer lists; **and**

9 **(c) Any other proprietary or sensitive business information of a service**
10 **company or its customers.**

11 (2) Notwithstanding any provision of law to the contrary, unless by order of a court of
12 competent jurisdiction, a county or waste management district, or **any of** its agents,
13 officials, ~~or~~ employees, **contractors, consultants, or other persons acting on its**
14 **behalf or for its benefit,** shall not compel the production or submission of, **or**
15 **otherwise request, acquire, receive, review, or possess** confidential business
16 information from a service company or its customers **by any means, including but**
17 **not limited to requests made to other public agencies that may cause the release**
18 **of confidential business information**~~to any county or waste management district~~.

19 **(3) Notwithstanding any provision of law to the contrary, confidential business**
20 **information shall be exempt from disclosure under the requirements of KRS**
21 **61.870 to 61.884.**

22 **(4) If any confidential business information is obtained in violation of this section,**
23 **the county or waste management district shall:**

24 **(a) Immediately secure the information to prevent further access or**
25 **dissemination;**

26 **(b) Require the return or certified destruction of the confidential business**
27 **information; and**

- 1 (c) Document all corrective action taken.
- 2 (5) This section shall not prohibit payment for work that a contractor can
- 3 demonstrate is uninfluenced by and independent from confidential business
- 4 information.